

		fearing retaliation.’ [Citation.] An employee injured by prohibited retaliation may file a private suit for damages.” (<i>Lawson v. PPG Architectural Finishes, Inc.</i> (2022) 12 Cal.5th 703, 709; see also Lab. Code, § 1105.) To plead a violation of Labor Code section 1102.5, plaintiff must allege she engaged in whistleblowing activity protected by the statute, and that the protected activity was a contributing factor in her suffering an adverse employment action. (Lab. Code, § 1102.6; <i>Lawson, supra</i>, 12 Cal.5th at p. 712.) The sixth cause of action alleges Defendant subjected Plaintiff to an adverse employment action by retaliating against Plaintiff. (Compl. ¶ 128.) As Plaintiff argues, the Complaint alleges Plaintiff engaged in protected activity by requesting reasonable accommodations and refusing to submit a false letter. (<i>Id.</i> at ¶¶ 31-33.) The Complaint, however, does not allege Plaintiff engaged in activity protected by Labor Code section 1102.5, namely that Plaintiff disclosed information Plaintiff reasonably believed disclosed a violation of non-compliance with federal or state law to individuals with authority over her. The demurrer is sustained as to the sixth cause of action. Defendant to give notice.
57	Winokur vs. General Motors, LLC 25-01492309	Demurrer to Complaint The Demurrer to the Complaint brought by General Motors, LLC is SUSTAINED IN PART and OVERRULED IN PART. To the extent the Demurrer is sustained, Plaintiff is GRANTED 15-days leave to amend. The Demurrer is OVERRULED as to the Fourth Cause of Action. The Demurrer to the Fifth Cause of Action is SUSTAINED WITH LEAVE TO AMEND. <u>4th Cause of Action for Breach of Implied Warranty</u> The four-year statute of limitations articulated in Commercial Code section 2725 applies to claims brought pursuant to the Song-Beverly Act. (<i>Krieger v. Nick Alexander Imports, Inc.</i> (1991) 234 Cal.App.3d 205, 214-215.) “A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered” (Com. Code, § 2725, subd. (2).) Similarly, “[t]he statute of limitations for breaches of the implied warranty of merchantability is four years.” (<i>Montoya v. Ford Motor Co.</i> (2020) 46 Cal.App.5th 493, 494.) Additionally, “an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.” (Code Civ. Proc., § 871.21, subd. (b).) “[T]his chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or

		(d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (Code Civ. Proc., § 871.20, subd. (a).) GM, the Defendant in this action, has elected to opt-in to the above lemon law procedures. The Court takes judicial notice pursuant to Evidence Code section 452, subdivision (h), of the Manufacturers Arbitration Certificate Program listings, located on the California Department of Consumer Affairs website, at https://www.dca.ca.gov/acp/accepted_manufacturers.shtml. Per the Complaint, Plaintiffs entered into the relevant warranty contract on 12/11/20. (¶6 of Complaint.) Although not explicitly stated, the reasonable implication is that the vehicle was delivered to Plaintiffs, on that same date. On demurrer, the Court “assume[s] the truth of all properly pleaded facts, as well as all facts that may be implied or reasonably inferred from those expressly alleged...” (<i>Sonoma Luxury Resort LLC v. California Regional Water Quality Control Bd.</i> (2023) 96 Cal.App.5th 935, 940.) The instant action was not commenced until 6/4/25, approximately four and a half years after delivery of the vehicle. While the Complaint is unclear as to when the express warranty expired, the Demurrer on this ground cannot be sustained. A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. (<i>Boy Scouts of America Nat. Foundation v. Superior Court</i> (2012) 206 Cal.App.4th 428, 438.) “In order for the bar to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint.” (<i>Id.</i> at pp. 438-439.) As the defect does not clearly and affirmatively appear on the face of the Complaint, the demurrer on this ground fails. Accordingly, the demurrer to the Fourth Cause of Action is OVERRULED. <u>Fifth Cause of Action for Fraudulent Inducement/Concealment</u> The limitations period for Plaintiffs’ fraud cause of action is three years. (Code Civ. Proc., § 338, subdivision (d).) “The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (<i>Ibid.</i>) “California law recognizes a general, rebuttable presumption, that plaintiffs have ‘knowledge of the wrongful cause of an injury.’ ” (<i>Grisham v. Philip Morris U.S.A., Inc.</i> (2007) 40 Cal.4th 623, 638 (Grisham).) The delayed discovery rule rebuts that presumption and tolls the statute of limitations. (<i>Ibid.</i>; See also <i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 803.) “In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.’ ” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) Likewise, “[w]hen a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that
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		otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory." (<i>Mills v. Forestex Co.</i> (2003) 108 Cal.App.4th 625, 641.) "A plaintiff who fails to sufficiently plead such facts normally should be permitted to amend his or her complaint to do so." (<i>Ibid.</i>) As noted above, the Complaint alleges Plaintiffs entered into the warranty contract on 12/11/20 (¶6 of Complaint.) This allegation implies Plaintiffs purchased the vehicle and took possession, on that date. Additionally, the Complaint alleges "Defendant GM committed fraud by allowing the Subject Vehicle to be sold to Plaintiffs without disclosing that the Subject Vehicle and its 8-speed transmission were defective and susceptible to sudden and premature failure." (¶46 of Complaint.) Here, the Complaint alleges that "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period" and that Defendant knew of the existence of such defects, prior to Plaintiff purchasing the vehicle. (¶11 and ¶47 of Complaint.) The implication from the above allegations is that the defects existed at the time of delivery. Because Plaintiffs are presumed to have knowledge of the wrongful cause of their injury (<i>Grisham</i>, supra, 40 Cal.4th at p. 638), the applicable statute of limitations began to accrue when they received the vehicle with a defect that could not be conformed to warranty. As the instant action was not filed until 6/24/25, more than four years thereafter, the claim appears barred on its face. Thereafter, the Complaint simply alleges that delayed discovery and/or tolling apply, in a conclusory manner. (¶23 of Complaint ["To the extent there are any statutes of limitation applicable to Plaintiffs' claims...the running of the limitation periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, the fraudulent concealment rules, equitable estoppel, the repair rule, and/or class action tolling (e.g., the American Pipe rule)."]) Further, Plaintiffs merely allege the wrongful conduct was discovered shortly before the filing of the complaint, "on or about April 8, 2025 when they requested a buyback and/or restitution of the Subject Vehicle from GM...GM failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act." (¶24 of Complaint.) Similarly, the specific allegations included within the fraudulent inducement claim, fail to plead delayed discovery. Plaintiffs allege Defendant was well aware of the transmission defects prior to the sale and that Plaintiffs "could not reasonably have been expected to learn or discover of the Vehicle's Transmission Defect and its potential consequences until well after Plaintiffs purchased the Vehicle." (¶57(c) of Complaint.) The above, however, does not allege facts which demonstrate "(1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 808.) Based on all the above, the Demurrer to the Fifth Cause of Action is SUSTAINED with 15-days leave to amend. Defendant to give notice.
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58	Aplizar vs. Bryan 23-01346664	Motion for Terminating Sanctions Defendants Aelee Bryan and Randal Bryan, erroneously sued and served as Randall Bryan, moves for terminating sanctions and an order striking the Complaint and dismissing the action of Plaintiff Jose Miguel Alpizar with prejudice. Defendants also request monetary sanctions in the amount of \$1,079.48. The motion is DENIED in part and GRANTED in part. On November 21, 2025, the Court granted Defendant Aelee Bryan’s unopposed Motion to Compel Plaintiff Jose Miguel Alpizar to provide a verified, full, and complete responses to Defendant’s Supplemental Discovery. (ROA 88 [11/21/25 Minute Order].) The Court ordered Plaintiff to provide a verified response without objections to Defendant’s supplemental discovery within fifteen days (15) of service of the ruling. (<i>Id.</i>) The Court further ordered Plaintiff to pay monetary sanctions to Defendant in the amount of \$780.00. (<i>Id.</i>) On November 24, 2025, Defendant filed Notice of Ruling that was served on Plaintiff via U.S. Mail. (ROA 91.) Plaintiff has not served any responses to the discovery or paid the ordered sanctions. (Barcelos-Pettit Decl. ¶ 5.) The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. (<i>Id.</i>) The court finds that the record here does not support terminating sanctions. Defendants’ motion does not set forth substantial evidence of Plaintiff’s continuous obstructive and willful conduct in the discovery process warranting the ultimate sanction. Plaintiff shall fully comply with the court’s November 21, 2025 Order. Plaintiff is ordered to serve verified responses, without objection, to the outstanding Supplemental Interrogatory and Supplemental Demand for Production within 30 calendar days. The court warns Plaintiff Jose Miguel Alpiza that Plaintiff’s failure to comply with his discovery obligations may result in more severe sanctions, including terminating sanctions. Defendants Aelee Bryan and Randal Bryan to give notice.
59	Palma vs. South Orange County Community College District 21-01234121	Motion to Strike or Tax Costs Plaintiff William Palma’s motion to strike or tax costs claimed by Defendant South Orange County Community College District (“Defendant” or “SOCCCD”) is GRANTED IN PART and DENIED IN PART. On 10/9/25, Judgment was entered in favor of Defendant and against Plaintiff. On 10/24/25, Defendant filed a Memo. Of Costs in the amount of \$1,575.02. (ROA 454) The instant motion was filed on 11/10/25. (ROA 458.)